

**STATEMENT OF WORK
FOR
SWITCHGEAR REPLACEMENT
EFFORT**

24 May 2024

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SECTION 1

DESCRIPTION OF SERVICES

1 INTRODUCTION

This Statement of Work (SOW) sets forth basic requirements for design, supply, and install activities supporting the Switchgear Replacement Effort. Performance on this contract will be required at Arnold Engineering Development Complex (AEDC) including Geographically Separated Units (GSUs). AEDC is comprised of multiple GSU's and should be considered one in the same under this SOW.

This SOW is organized and developed to provide maximum flexibility in the use of this contract vehicle. This contract is considered to be a supply contract. However, there is an incidental piece to the overall requirement that requires design and construction verbiage to be part of this SOW. Basic requirements described here are further refined through the use of individual project Delivery Orders (DO). DOs will clearly define the project requirements in terms of performance, appearance, criteria, and/or specification with sufficient detail that permits a contractor to provide a proposal with reasonable performance, cost and schedule risk.

The Contractor shall function as an integral team member in support of the AEDC mission, to include sharing information with other AEDC contractors and cooperation with communities and other government entities.

1.1 BACKGROUND AND OBJECTIVES

The primary purpose of this acquisition is to award a contract for the design, supply, installation, and checkout of iso-phase-gas-insulated switchgear for AEDC. There is a need for standardization of equipment from personnel safety and cost for future AEDC acquisition of iso-phase Gas Insulated Switchgear (GIS) This effort includes electrical utility sustainment, restoration, and modernization to support the research, development, test and evaluation (RDT&E) mission at AEDC.

The utility systems at AEDC were primarily built in the 1950s and 1960s and have exceeded their life expectancy. Spare parts are not available contributing to equipment down time and Loss Test Time (LTT). For decades, the restoration and modernization of utility systems has been underfunded, resulting in diminished test capability and increased maintenance costs. More importantly, the loss of test capability adds risk to development of military and commercial aerospace systems. Over the years, Air Force Test Center (AFTC) and Air Force Materiel Command (AFMC) leadership have successfully articulated the potential impact to future system development. The AF has budgeted for major investments to begin the mitigation of long-term risk. The replacement of switchgear is programmed through FY30 resulting in the FY25 requirement for the GIS requirements type Indefinite Delivery Contract (IDC).

The Government will serve as the lead program manager with support from the AEDC operating contractors for DOs executed under this contract. The Contractor shall serve as the prime or lead for projects integrating multiple capabilities and is required to self-perform a predominant segment of the work.

1.2 SCOPE OF WORK

The Contractor shall provide all labor, materials, equipment, transportation, supervision, quality control, and other items necessary to design, manage and accomplish the work. The effort will be performed at AEDC and its related GSUs. AEDC is comprised of multiple GSUs and is considered one and the same organization under this justification. Requirements listed in this SOW are assumed to be AEDC-wide unless specifically noted otherwise.

The types of projects captured by this SOW may include the design, supply, and install, of GIS and related equipment / infrastructure at AEDC. A partial representative list of the potential projects that are envisioned to be executed by the Switchgear Replacement Effort through DOs is provided as Attachment 2.

1.3 DELIVERY ORDER TYPES

The Switchgear Replacement Effort is a sole-source requirements type Indefinite Delivery Contract that may include the design, supply, and installation of GIS and related equipment. Performance of work shall be accomplished by the Contractor through individual DOs. The project scope on each DO will be identified by the Government and provided in a detailed Statement of Work or Statement of Objectives specifying project requirements. DOs will be provided by Request for Proposal (RFP) and spelled out in each DO.

1.4 PROJECT ADMINISTRATION

The Contractor shall perform quality control, project management, planning, design, execution, and reporting to effectively secure and monitor prime and sub-contractor work.

1.4.1 Contractor Organization: If self-performing capabilities are not practicable, the prime contractor shall form a teaming arrangement with a mechanical, electrical, instrumentation, data, and controls (ID&C) construction or engineering design firm to meet the full range of requirements of this contract. The Contractor shall provide comprehensive design capabilities including assessment, analysis, planning, management and quality control to ensure a completely functional and finished product.

1.4.1.1 Quality Control Engineering: The Contractor shall be responsible for overall quality control of each DO performed under this contract. The Contractor shall also ensure that quality work is completed on schedule and within the allocated budget. The quality control engineer for the (IDC) shall have a minimum of 10 years experience as an electrical engineer and 5 years providing quality control for design or installation.

1.4.1.2 Manufactures Field Service: Provide the services of a factory authorized service representative to supervise the field assembly and testing of the equipment installed related to DO.

1.4.1.3 Project Management: The Contractor shall be responsible for the overall management of each DO performed under this contract. The Contractor shall be responsible for timely status reporting as specified in the DO. The Contractor shall also ensure that quality work is completed on schedule and within the allocated budget. The project manager shall have a minimum of 5 years experience managing projects of similar magnitude and complexity.

1.4.1.4 Project Sight Supervision: The Contractor shall identify the primary POC during all phases of the DO. The Contractor shall ensure a dedicated project sight supervision for every DO in construction and check out phase. The Contractor shall notify the Contracting Officer (CO) in writing of the intended project superintendent before the issuance of the Notice to Proceed (NTP). If the superintendent is changed during the DO Period of Performance (PoP), the Contractor shall notify the CO in writing of the intended replacement. The designated superintendent or delegated representative shall be on site anytime that install work is being performed. The Contractor shall provide the CO and the Contracting Officer Representative (COR) with the names of a primary and alternate POCs telephone numbers in case of emergency. The project sight supervision shall have a minimum of 5 years experience managing projects of similar magnitude and complexity.

1.4.1.5 Relay Engineer / Programmer: The Contractor shall be responsible for relay coordination study implementation to include; relay settings, programming and troubleshooting during manufacturing, factory acceptance testing, installation, and checkout. One relay engineer can cover two DOs in the installation / checkout phase. If more than two DOs are in installation / checkout there will need to be additional relay engineers. The primary relay engineer shall have a minimum of 10 years experience programming relays for switchgear.

1.4.2 Removal of Contractor's Employees: The Contractor agrees to utilize only experienced, responsible, and capable people in the performance of work. The CO may require that the Contractor remove employees who endanger persons or property, whose continued employment under this contract is inconsistent with the installation Commander's safety and security interests of good order and discipline, or who are determined by the CO or COR as being incapable of rendering the services in accordance with this contract.

1.4.3 Business Relations: The Contractor shall successfully integrate and coordinate all activities needed to execute the DO. The Contractor shall manage the timeliness, completeness, and quality of problem identification. The Contractor shall provide corrective action plans, proposal submittals, timely identification of issues, and effective management of subcontractors. The Contractor shall coordinate and cooperate closely with associate contractors involved in the execution of AEDC's mission.

SOW – ATTACHMENTS

ATTACHMENT 1 LIST OF POTENTIAL PROJECTS

**ATTACHMENT 2 REFERENCES, REGULATORY, CODES and STANDARD DESIGN
& CONSTRUCTION CRITERIA**

ATTACHMENT 1 - REFERENCES, REGULATORY, CODES, AND STANDARD DESIGN & CONSTRUCTION CRITERIA

The most applicable references are listed below, although others may apply. The Contractor shall perform a code analysis to determine the specific codes applicable to each delivery order. In the event of a conflict between commercial and Air Force, regulations, codes, standards, instructions, technical letters, manuals, and handbooks, the more stringent criteria will generally apply. Proposed codes which meet the technical requirements will be considered, if in the best interest of the Government. Latest editions of the publications of the organizations listed below shall be used.

AASHTO American Association of State Highway and Transportation Officials
ACI American Concrete Institute
AI Asphalt Institute
AIA American Institute of Architects
AIHA American Industrial Hygiene Association
AISC American Institute of Steel Construction
ANSI American National Standards Institute
API American Petroleum Institute
ARI Air-Conditioning and Refrigeration Institute
ASA Acoustical Society of America
ASCE American Society of Civil Engineers
ASHRAE American Society of Heating, Refrigerating, and Air-Conditioning Engineers
ASME American Society of Mechanical Engineers
ASSE American Society of Safety Engineers
ASTM American Society for Testing and Materials
AWS American Welding Society
AWWA American Water Works Association
BHMA Builders Hardware Manufacturers Association
CFR Department of Labor - Code of Federal Regulation
CNRA California Natural Resources Agency
CSI Construction Specifications Institute
EIA Electronic Industry Association
EPA Environmental Protection Agency
ICSSC Interagency Committee on Seismic Safety in Construction
IMC International Mechanical Code
IPC International Plumbing Code
IBC International Building Code
ICC International Code Council
IEEE Institute of Electrical and Electronics Engineers
IES Illuminating Engineering Society
ISA Instrumentation Society of America
ISO International Organization for Standardization

MDNR Maryland Department of Natural Resources
 MSS Manufacturers Standardization Society of the Valve and Fittings Industry
 NACE National Association of Corrosion Engineers
 NAPHCC National Association of Plumbing, Heating, and Cooling Contractors
 NEBB National Environmental Balancing Bureau
 NEC National Electrical Code
 NEHRP National Earthquake Hazard Reduction Program
 NEMA National Electrical Manufacturers Association
 NETA International Electrical Testing Association
 NFPA National Fire Protection Association
 NIBS National Institute of Building Sciences
 NIST National Institute of Standards and Technology
 NOIA National Concrete Masonry Association
 NSF National Sanitation Foundation
 OSHA Occupational Safety and Health Administration
 SCAQMD South Coast Air Quality Management District
 SMACNA Sheet Metal and Air-Conditioning Contractors National Association
 SSPC Society for Protective Coatings
 SSPC Steel Structures Painting Council
 TDEC Tennessee Department of Environment and Conservation
 TIA Telecommunications Industry Association
 UFC Unified Facilities Criteria
 UL Underwriter's Laboratories

- 1.1 AEDC Operating Instructions and Standards
 - AEDCOI 21-1, Foreign Object Damage Prevention Program
 - AEDCOI 21-2, Hold and Impoundment
 - AEDCOI 21-205, Tactical Integration Group
 - CCP-100, AEDC Protective Coatings and Corrosion Control Plan
 - AEDC-STD-CM-1, Configuration Management
 - AEDC-STD-SE-1, AEDC Standard System Engineering
 - TSS-SE-HNDBK, Test Systems Sustainment Systems Engineering Handbook
 - AEDC-ENGR-STD-T-1, AEDC Standard Pressure Vessels
 - AEDC-ENGR-STD-T-2, AEDC Standard Pressure Piping
 - AEDC-ENGR-STD-T-3, AEDC Standard Engineering Drawing and Drafting Practices
 - AEDC-ENGR-STD-T-4, AEDC Standard for Procurement Documentation
 - AEDC-ENGR-STD-T-5, AEDC Standard Welding Practices
 - Arnold AFB Architectural Compatibility Standards
 - AFTCI 91-202 AEDCSUP, AFTC Test Safety Review Policy
 - AEDCI 21-3, Tool Control
 - AEDCI 63-3733, Organizational Engineering
 - Asbestos Removal CSI Section 02 08 00 modified for AEDC
 - Lead and Heavy Metal Removal CSI Section 02 08 50 modified for AEDC

- 1.2 AEDC Safety, Health, and Environmental Standards (AEDC SHE Standards):
- A4 System Safety
 - A6 User and Subcontractor Safety
 - A9 Hazard Communication
 - A10 Job Safety Analysis
 - B1 Master Work Permit
 - B2 Lockout/Tag out (LOTO)
 - B3 Control of Hazardous Areas Using Safety Signs, Tags, and Barricades
 - B5 Confined Spaces
 - B6 Low Voltage Electrical Safety Related Work Practices
 - D3 Identification of Piping Systems
 - D6 Aerial Work Platforms
 - D8 Portable Power Tools
 - D9 Fixed and Portable Ladders
 - D10 Scaffolds
 - E7 Asbestos
 - E17 Oil and Hazardous Substances Spill Response
 - E18 Managing Wastes Containing Chemical or Petroleum Products
 - E19 Lead and Heavy Metals
 - F2 Personal Protection Equipment (PPE)
 - F6 Fall Protection
- 1.3 Regulations:
- 10 CFR 435 Energy Conservation Voluntary Performance Standards for New Buildings. Mandatory for Federal Buildings
 - Energy Policy Act
 - FAR 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items, May 2008.
 - AFFARS 5352.223-9000 Elimination of Use of Class I Ozone Depleting Substances (ODS), October 2019.
- 1.4 Air Force Engineering Technical Letters:
- AF ETL 01-1: Reliability and Maintainability Design Checklist
 - AF ETL 02-12, Communications and Information Systems Criteria for Air Force Facilities, 2008
 - AF ETL 11-21, Emergency and Standby Generator Design, Maintenance and Testing Criteria , 2011
 - AF ETL 01-18, Fire Protection Engineering Criteria
 - AF ETL 01-18, Fire Protection Engineering Criteria-Electronic Equipment Installations, 24 October 2001

- AF ETL 08-13, Incorporating Sustainable Design and Development (SDD) and Facility Energy Attributes in the Air Force Construction Program, 14 September 2008

1.5 Air Force Instruction (AFI):

- AFI 32-10141, Planning and Programming Fire Safety Deficiency Correction Projects
- DAFI 32-1032, Planning and Programming Appropriated Funded Maintenance, Repair, and Construction Projects
- AFMAN 32-1068, Heating Systems and Unfired Pressure Vessels
- AFMAN32-7002 Environmental Compliance and Pollution Prevention

1.6 Air Force Manuals and Military Handbooks:

- AFMAN 91-201, Explosives Safety Standards
- MIL-HDBK 1004/6 Lightning Protection 1988
- DAFMAN 32-1084, Facility Requirements

ATTACHMENT 1 – LIST OF POTENTIAL PROJECTS

The following is a partial representative list of the potential projects that are envisioned to be executed by the Switchgear Replacement Effort Contractor through construction or design-build DOs

TITLE
VKF Switchgear (REPLACE 6.9 KV SWITCHGEAR-VKF, FAC, 651)
REPAIR BY REPLACEMENT CF-1 SWITCHGEAR WITH GIS, FACILITY 1524
REPAIR BY REPLACEMENT CF-2 SWITCHGEAR WITH GIS, FACILITY 1524
RPR BY RPL APTU HEDI UNIT SUBSTATION & SWITCHGEAR, FAC 583
B1103 CCF Unit Subs / Ring Bus
ETF XA11 Swg and XA12 Switchgear
REPAIR BY REPLACEMENT SPS UNIT SUBSTATION, FAC.1507
PES North Switchgear (12 GIS Sections)
PWT Switchgear Lineups J, K, L
MPAH Phase II
ETF US11 Replace with GIS MV Sections
ASTF Swg Lineup E6A2
VKF Mach 12 Switchgear Bldg 680
REPLACE MARK-1 UNIT SUBSTATION #1 FAC 10001
REPAIR BY REPLACEMENT VKF UNIT SUBSTATION 8, FAC.430
REPAIR BY REPLACEMENT ROWLD CRK PUMP STATION SWGR, B1547
REPAIR BY REPLACEMENT ASTF UNIT SUBSTATION #1, B928
REPAIR BY REPLACE ASTF UNIT SUBSTATIONS #2A, 2B, & 2C, B915
REPAIR BY REPLACEMENT ASTF UNIT SUBSTATION #3, B905
REPAIR BY REPLACEMENT ASTF UNIT SUBSTATION #4, B1098
REPAIR BY REPLACEMENT J4 UNIT SUBSTATION, B549
REPAIR BY REPLACEMENT VKF UNIT SUBSTATION 10, B651
REPAIR BY REPLACEMENT J6 UNIT SUBSTATIONS #2A & #2B, B524
REPAIR BY REPLACEMENT J6 UNIT SUBSTATIONS #1A & #1B, B2121
REPAIR BY REPLACEMENT J6 UNIT SUBSTATION #4, B2129
REPAIR BY REPLACEMENT J6 UNIT SUBSTATION #3, B562
REPAIR BY REPLACEMENT VKF UNIT SUBSTATION 2, FAC. 651
REPAIR BY REPLACEMENT VKF UNIT SUBSTATION 3, FAC. 651
REPAIR BY REPLACEMENT ETF-B UNIT SUB 3 & 3A, FAC. 878

Attachment 2

AEDC LOCAL GUIDANCE

SANITATION

The Contractor shall provide toilet facilities in a ratio of not fewer than one for each 30 persons or fraction thereof. Connections to existing sanitary sewer manholes may be made. The Contractor shall supply drinking water from connections to the existing potable water system. The Contractor shall take proper precautions to protect the water system from damage and contamination. Any temporary connections made for drinking water or toilet facilities shall be removed by the Contractor in a manner satisfactory to the CO before final acceptance of the work.

EXISTING UNDERGROUND UTILITIES

The location of existing underground utilities as shown on the contract drawings has been taken from as built drawings. There may be underground utilities which are not shown on the contract drawings and these utilities may be dangerous if ruptured. If the Contractor unearths or strikes any underground utility not shown, the excavation work shall cease and the CO shall be notified immediately. The Contractor shall determine with caution the exact location of such utilities and will not proceed with further excavation unless otherwise advised by the CO. All marked utilities that are damaged by the Contractor shall be repaired or replaced as determined by the CO.

UTILITIES AVAILABLE

- a) Water: All reasonable required amounts of potable and raw water will be made available without cost to the Contractor from existing systems, outlets, and supplies near the vicinity of the work. All water shall be carefully conserved. All temporary connections and piping installed by the Contractor shall be removed in a manner satisfactory to the Contracting Officer prior to final acceptance of the work.
- b) Electricity: All reasonably required amounts of 60 HZ electric power at 110V and 480V will be made available without cost to the Contractor from existing electrical systems near the vicinity of the work. The Contractor shall install and maintain at no cost to the Government any necessary supply connections and facilities in a manner satisfactory to the Contracting Officer. All electrical service shall be removed in a manner satisfactory to the Contracting Officer.

DISPOSAL AREAS

An approved disposal area is located about 2 miles from the construction site. This area is approved for surplus earth, stone, broken concrete, and building materials waste. Building materials waste also includes containers, dunnage, and other related items.

CONTRACTOR IDENTIFICATION

Contractor personnel and their subcontractors shall identify themselves as Contractors or subcontractors during meetings, telephone conversations, in electronic messages, or correspondence related to this contract.

Contractor occupied facilities (on AFMC or other Government installations) such as offices, separate rooms, or cubicles shall be clearly identified with Contractor supplied signs, name plates or other identification, showing that these are work areas for Contractor or subcontractor personnel.

SUBMITTAL SCHEDULE

The Contractor shall submit a "submittal schedule" indicating calendar dates for each submittal with-in two weeks on Notice to Proceed (NTP).

OUTAGE COORDINATION

Each utility outage request shall be submitted by the Contractor to the Government Representative for Government approval. Requests for utility outages shall be submitted at a minimum four weeks prior to each requested outage date and is contingent upon Government approval. Outage dates may be given on holidays and / or weekends depending upon the Government's schedule.

SCHEDULE CONSTRAINTS

All work involving the raw water piping including valves and other piping accessories shall be performed during scheduled / planned raw water outages. The outage shall be coordinated with the Government Representative. Outage dates may change based on Government operations.

VISIT AUTHORIZATIONS

AEDC is a U.S. Government Air Force installation. In accordance with AEDC Installation Security Instructions (ISI-31-101), all visitors to AEDC shall adhere to the following guidelines: U.S. citizens and lawful permanent residents are authorized to visit the facility and require a picture ID as identification at the time of visit. Permanent residents shall present their "Permanent Resident / Alien Registration Card" as their form of identification. Foreign nationals who work in the U.S. shall submit their visit request on their firm's letterhead through their AEDC POC to the Foreign Disclosure Office, stating the purpose and length of the intended visit. Four weeks advance notice for processing is required for non-US Citizen visits.

SECURITY RULES AND REGULATIONS

Security Rules and Regulations

(a) Security:

The contractor shall be required to comply with all security directives and other security requirements identified in this contract. These requirements apply to all contractors on Arnold AFB in the performance of their contract.

(b) Pass and Identification:

The contractor shall ensure the pass and identification items required for contract

performance are obtained for employees and non-Government-owned vehicles. The contractor shall retrieve all identification media, including vehicle passes from employees who depart for any reason before the contract expires, e.g. terminated for cause, retirement, etc.

(c) Controlled Unclassified Information (CUI):

The contractor shall comply with Freedom of Information Act (FOIA) requirements IAW DODD 5400.07, *DoD Freedom of Information Act (FOIA) Program*. This regulation sets policy and procedures for the disclosure of records to the public.

The contractor shall safeguard CUI provided under this contract as specified in DoDI 5200.48_DAFI 16-1403, Controlled Unclassified Information. CUI is information that requires protection under laws, regulations, or Government-wide policies, but that does not qualify as classified under Executive Order 13526, Classified National Security Information, December 29, 2009. This may include information with legacy For Official Use Only (FOUO) markings, previously protected under DoDM 5200.01-V4, DoD Information Security Program: Controlled Unclassified Information. Sensitive information is information that if lost, misused, compromised or accessed by unauthorized personnel could adversely affect U.S. national interest, the conduct of DoD programs, or the privacy of DoD personnel. It comes in many forms; personal data under the Privacy Act, personnel records, privileged data (chaplain and judge advocate records), investigative data, scientific and technical information (STINFO), export controlled data (critical technologies), proprietary data, or other CUI data. Sensitive information meets the criteria for exemption from mandatory public disclosure under the Freedom of Information Act (FOIA). For guidance with marking CUI, contact AEDC/IP at (931) 454-5343.

Controlled Unclassified Information (CUI) is any unclassified information that requires protection through the application of access controls, distribution controls, and protective measures. This includes information which is exempt from public disclosure per DoDI 5200.48_DAFI 16-1403: *Controlled Unclassified Information (CUI)*, and which is NOT releasable to foreign nationals. As instructed upon receipt of Contractor Defense Logistics Information Service (DLIS) Certification via Form DD Form 2345, or in accordance with the DoD Directives referenced above, the following handling requirements must be followed to protect this information, which is the property of the U.S. Government. Protection requirements apply to entire documents or to extracted portions, to include electronic files (extracted materials must also be appropriately marked):

- 1) PUBLIC RELEASE: Withhold from public disclosure,
- 2) AUTHORIZED RELEASE: Release only to organizations authorized in the applicable Distribution Statement,
- 3) CONTRACTOR ACCESS: If contractors are authorized for access via the Distribution Statement, releasing activities must first ensure that the contractor has a valid DLIS certification on file. Distribution Limited materials should be released to (and, if mailed, addressed to) the "Contact" identified on the DLIS Certification Form DD 2345 for contractor organizations. Contact DLIS at 1-

Distro A – Public Release

800-352-3572 or

<http://www.dla.mil/HQ/InformationOperations/Offers/Products/LogisticsApplications/JCP.aspx>,

- 4) EXPORT CONTROL: Materials that are Distribution Limited can also export controlled. If so, an Export Control Warning Notice must be applied to affected materials,
- 5) FOREIGN NATIONALS: Do NOT release Distribution Limited materials to foreign nationals,
- 6) ELECTRONIC TRANSFER: Whenever practical, when transferring information electronically (to include Internet and telephone), use ONLY secure methods, (i.e., approved hardware or software encryption),
- 7) MAILING OR SHIPPING: When mailing or shipping, do NOT reveal sensitivity of contents on outer wrapper,
- 8) STORAGE DURING WORK HOURS: Store in out-of-sight location during working hours when unattended,
- 9) STORAGE DURING NON-WORK HOURS: Store in locked building, room, desk, file cabinet, etc. during non-working hours to prevent unauthorized access,
- 10) NETWORK OR PC STORAGE: Establish access-protected server shares if stored on networks (no PC hard drive storage unless PC is completely standalone); no foreign national access is authorized, to include system administrators, outsourced data services, etc.,
- 11) NETWORK PRINTERS: Use of network printers requires immediate retrieval of printed material to ensure unauthorized access does not occur,
- 12) MARKINGS: Mark all derivatively created materials/information/media per the original markings,
- 13) COPIES: All copies made of original materials must be marked - no waste or overruns left on copier equipment or printers,
- 14) DESTRUCTION: As per DoDI 5200.48_DAFI 16-1403.
- 15) RETENTION: All information is to be destroyed upon completion of Official use unless authorized in writing otherwise,
- 16) COMPUTER MEDIA: Mark computer media as it is created per original materials.

(d) Controlled Technical Information (CTI) means technical information with military or space application that is subject to controls on the access, use, reproduction, modification, performance, display, release, disclosure, or dissemination. CTI is to be marked with one of the distribution statements B through F, in accordance with Department of Defense Instruction 5230.24, Distribution Statements of Technical Documents. The term does not include information that is lawfully publicly available without restrictions. "Technical Information" means technical data or computer software, as those terms are defined in Defense Federal Acquisition Regulation Supplement clause 252.227-7013, "Rights in Technical Data - Noncommercial Items" (48 CFR 252.227-7013). Examples of technical information include research and engineering data, engineering drawings, and associated lists, specifications, standards, process sheets, manuals, technical reports, technical orders, catalog-item identifications, data sets, studies and analyses and related information, and computer software executable code and source code.

Distro A – Public Release

- (e) Export Control: Any item, technical data, or software furnished by the government in connection with this contract is supplied for use in the United States only. Contractor agrees to comply with all applicable U.S. Export Control laws and regulations, specifically including, but not limited to, the requirements of the Arms Export Control Act, 22 USC 2751 - 2794, including the International Traffic in Arms Regulation (ITAR), 22 CFR 120 - 130; the Export Administration Act, 50 USC app. 2401 - 2420, including the Export Administration Regulations (EAR), 15 CFR 730 - 774; the Atomic Energy Act of 1954 (AEA), as amended; and including the requirement for obtaining any export license or agreement, if applicable. Without limiting the foregoing, Contractor agrees that it will not transfer any Export Controlled item, data, or services, to include transfer to foreign persons employed by or associated with, or under contract to Contractor or Contractor's lower-tier suppliers, without the authority of an export license, agreement, or applicable exemption or exception. Contractor shall immediately notify the Government Contracting Agency (GCA) and Servicing Security Activity (SSA) if it transfers any Export Controlled item, data, or services to foreign persons. Diversion contrary to U.S. export laws and regulations is prohibited.
- 1) Contractor shall immediately notify the GCA and the SSA if Contractor is, or becomes, listed in any Denied Parties List or if Contractor's export privileges are otherwise denied, suspended or revoked in whole or in part by any U.S. Government entity or agency.
 - 2) If Contractor is engaged in the business of either exporting or manufacturing (whether exporting or not) defense articles or furnishing defense services, Contractor represents that it is registered with the Directorate of Defense Trade Controls, as required by the ITAR, and it maintains an effective export/import compliance program IAW the ITAR. The Contractor shall flow down the requirements of this clause to all subcontracts.

(f) Reporting Requirements:

Contractor personnel shall report to an appropriate authority any information or circumstances of which they are aware may pose a threat to the security of DOD personnel, contractor personnel, resources, and classified or unclassified defense information. Contractor employees shall be briefed by their immediate supervisor upon initial on-base assignment.

(g) Physical Security:

The contractor shall be responsible for safeguarding all Government property and controlled forms provided for contractor use. At the end of each work period, all Government facilities, equipment and materials shall be secured.

(h) Computer Security (COMPUSEC) / Automated Information System Requirements:

If access to unclassified computer systems is required the following requirements apply: Users must be a US Citizen, or receive AEDC or AFMC Foreign Disclosure Office (FDO) approval prior to access being granted; users must complete a GC 591 to request access, requestor must have a favorable NACI, or an approved Interim AIS Request on file, requestor

must complete the AF Information Assurance (IA) Training. Users bringing Portable Electronic Devices on base wanting to connect to AEDC computer systems / networks shall comply with established AEDC procedures. The Contractor shall accomplish all Information Assurance tasks identified in; AFD 33-2, Information Assurance Program, and AFI 33-200, Information Assurance (IA) Management to include all tasks and directives identified therein including, but not limited to; AFSSI 300 Series - COMSEC Equipment, AFSSI 400 Series - COMSEC Operation, AFSSI 700 Series EMSEC, and 8500 Series - IA Implementation, or their replacements. National and DoD level documents shall be used as mandatory directives in lieu of, or in addition to AF directives, Program, and local host base COMPUSEC requirements. Ensure employees complete any additional computer security training requirements mandated by the host base as appropriate. The Contractor shall comply with the DOD 5200.2-R, Personnel Security

(i) Information Security (INFOSEC):

Information, regardless of media, shall be controlled and maintained IAW with the NISPOM and guidance provided by the SSA.

(j) Privacy Act:

Contractor shall comply with AFI 33-332, Privacy Act Program, when collecting and maintaining information protected by the Privacy Act of 1974, Title 5, U.S.C., Section 552a. Contractor shall remove or destroy official records only IAW Air Force Records Information Management System, (AFRIMS) located on the internet at: <https://www.my.af.mil/gcss-af61a/afrims/afrims/rds/rds_series.cfm>.

(k) Operations Security (OPSEC):

Contractor shall comply with DoDM 5205.02, DoD Operations Security (OPSEC) Program Manual, AFI 10-701, Operations Security (OPSEC), DoDM 5220.22V2_AFMAN 16-1406V2 National Industrial Security Program: Industrial Security Procedures for Government Activities, and local plans and publications.

(l) Antiterrorism Training:

Within 30 calendar days after NTP, all contractor personnel shall complete Antiterrorism Level I training, as required by DODI 2000.16. Newly hired personnel shall complete the Antiterrorism Level I Training within the first 30 calendar days of their employment. Refresher Antiterrorism Level I training shall be completed and documented annually thereafter. The training is provided at <<https://atlevel1.dtic.mil/at/>> and also available through Advanced Distributed Learning Services (ADLS), Force Protection Course (ZZ133079) at <https://golearn.csd.disa.mil/kc/main/kc_frame.asp> for AF Portal access or <<https://golearn.csd.disa.mil/kc/login/login.asp>> for non-portal login.

(m) Contractor Consent to Background Checks:

The Contractor shall not employ persons to perform under this contract if such employee is deemed or identified as a potential threat to the health, safety, security, general well-being or operational mission of the installation and its population, nor shall the Contractor or subcontractor employ persons under this contract who have an outstanding criminal warrant as identified by the Tennessee Information Enforcement System (TIES) through the National Crime Information Center. TIES checks will verify if a person is wanted by local, state, or federal agencies. All Contractor and subcontractor personnel must consent to TIES background checks. Contractor and subcontractor personnel who do not consent to a TIES check will be denied access to the installation. Information required to conduct a TIES check includes: full name, driver's license number, and/or social security number, date of birth of the person entering the installation, and completion of a background check questionnaire. The Contractor must have this information ready to provide to the Visitor Control Center, if requested.

Contractors must ensure their employees and those of their subcontracts have the proper credentials allowing them to work in the United States. Persons later found to be undocumented or illegal aliens will be remanded to the proper authorities.

The Contractor shall not be entitled to any compensation for delays or expenses associated with complying with the provisions of this clause. Furthermore, nothing in this clause shall excuse the Contractor from proceeding with the contract as required.

(n) Access to Installation During Force Protection Conditions (FPCONs):

Gaining access to the installation will be done IAW the requirements outlined in the local Antiterrorism/Integrated Defense Plan(s). Contractors will also be assigned a mission essential designation IAW requirements contained in Antiterrorism/Integrated Defense Plan(s). Only the installation commander or the unit commander requesting contract support will assign the mission essential designation.

(o) Property Protection:

Property protection for the facility where the Contractors' primary work center is located will be the responsibility of the local facility manager and local Security Manager, or their duly authorized representative IAW AFI 31-101, Integrated Defense, and command/local directives to include AAFB Plan 31-101. The Contractor must safeguard all government-owned equipment and materials in his/her possession or use.

SAFETY

The contractor is solely obligated for compliance with OSHA, CFR 1910 and 1926, AFSOH 91-501, NFPA 101 and other applicable laws and regulations for the protection of contractor employees, subcontractor, Government employees and Government property. The government will assume no liability or responsibility for the contractor's compliance or non-compliance with such requirements. The contractor shall furnish to each of his/her employees a place of

employment, which is free from recognized hazards. The contractor shall brief his/her employees on the safety requirements of this contract and on hazards associated with prescribed tasks. The contractor shall be responsible for compliance with OSHA Public Law and the resultant standards identified within. In addition, the contractor shall be required to flow down the safety requirements / specifications to all subcontractors. The contractor shall comply with safety rules of the AEDC Support Contractor at interface points of new construction and modifications to existing systems and with all AEDC Base Safety Standards identified in the contract / SOW / SOO.

In addition, Contractor shall comply with the following:

- a) Air Force Safety requires that contractors performing on Air Force installations shall provide their employees safety and health protection equal in quality to that provided to Air Force employees. However, the contractor shall be responsible for managing their health and safety program.
- b) Contractors shall be required to flow down Safety requirements to all subcontractors who qualify as applicable contractors under their contract.
- c) Contractors shall be required to submit a Safety and Health Plan and corresponding site safety checklist to the AEDC Safety Office, Contracting Officer and Project Manager within 10 days after NTP.
- d) Contractors shall submit their TCIR and DART rates and OSHA 300A form along with their safety and health plan. The TCIR and DART rates will be reviewed by AEDC Safety and may be used to determine contractor responsibility.
- e) Contractor's performance shall be held accountable for compliance with their safety and health plan, to include mishap reporting.
- f) Contractors shall ensure their employees and subcontractors report all pertinent facts regarding all mishaps within the initial 24 hours of event. Contractors shall cooperate with government personnel and base operating contractors in all safety investigations, to include toxicology testing.

- g) Contractors shall be required to identify the processes and procedures used to track compliance with the Safety and Health Plan.
- h) The Contractor Safety and Health Plan shall demonstrate a management commitment to employee safety and health. The plan shall include application and responsibility to subcontractors and shall include as a minimum the following elements:
 - 1. Worksite hazard analysis with base-line hazard identification and required control measures.
 - 2. Job site analysis which lists the hazards associated with performing the task and the applied control measures.
 - 3. Corrective action plan for identified hazards and identifying individual responsible for corrective actions and tracking of hazards.
 - 4. Inspection program for each worksite to include identifying the individual conducting the inspection and the frequency of inspection.
 - 5. Employee hazard reporting procedures.
 - 6. Procedures for accident investigation and reporting.
 - 7. Emergency response plan including first aid/injury procedures.
 - 8. Employee safety and health training requirements and documentation process.
 - 9. Identify applicable safety rules and regulations.
 - 10. Identify Safety roles and responsibilities of management, supervisors, employees and contractor safety coordinator.

STORAGE REQUIREMENTS

Contractor may be required to store equipment until the time of installation. Each DO shall define the storage requirement in detail.

DEFINITIONS

Applicable Contractor. A contractor whose employees worked at least 1,000 hours at the site in any calendar quarter within the last 12 months and is NOT directly supervised by the applicant (installation).

Days Away, Restricted, and or Transfer Case Incident Rate (DART). The number of recordable injuries and illness cases per 100 full-time employees resulting in days away from work, restricted work activity, and/or job transfer that a site has experienced in a given time frame.

Total Case Incidence Rate (TCIR) - Total number of recordable injuries and illness cases per 100 full-time employees that a site has experienced in a given time frame.